COMMERCIAL AGREEMENT - RECORD 010

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-010

1. Recitals and defined terms

This Deployment Order and Acceptance Addendum is made between Helioscope Robotics, Inc. as Provider and Juniper Cold Storage Partners LLC as Customer, a refrigerated storage business organised in Georgia, contracting through Juniper Cold Storage Partners LLC. Juniper and the Provider have agreed that terms defined in the recitals and in Exhibit A carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Save as Exhibit A otherwise provides, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. Operationally, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. The Deployment Order and Acceptance Addendum reaches each of Juniper's 3 sites separately, which is how a refrigerated storage operator in Georgia administers it. Administration of this obligation for Juniper sits with the account team rather than with central contracts, and Article 3 (Scope of Supply) is where it is evidenced.

Juniper retains the right, notwithstanding Article 10 (Change Control), to require that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. On the mechanics, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. This bites at Juniper's 3 sites, since a refrigerated storage operator administers the Deployment Order and Acceptance Addendum where the units work. Notices under Article 19 (Confidentiality) go to the contracting entity named in the recital and not to any Juniper affiliate that may operate a site.

For the purposes of the Deployment Order and Acceptance Addendum, the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. As between them, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Juniper treats the obligation as a site-level matter across its 3 sites in Georgia, consistent with the Deployment Order and Acceptance Addendum. The Juniper relationship is managed against Article 4 (Orders and Quantities) at each quarterly review, and any variance is minuted there rather than in the Order.

For the purposes of the Deployment Order and Acceptance Addendum, telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. By way of qualification, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Site count matters here: Juniper has 3 sites, and the Deployment Order and Acceptance Addendum treats each as a separate delivery point. Where Juniper has raised a query the Provider has answered by reference to Article 16 (Term and Termination), and the exchange is on the contract file.

Juniper deployment order - Exhibit D - Component Prices, Lead Times and Sourcing

Juniper price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
JUN-P0001	part 1358-U	encoder	$2,011	6	400	single source	last-time-buy notice 12 months
JUN-P0002	part 5164-R	gearbox	$1,262	21	550	single source	last-time-buy notice 12 months
JUN-P0003	part 5966-E	harness	$475	9	400	qualification in progress	last-time-buy notice 12 months
JUN-P0004	part 6820-M	castor assembly	$245	22	200	dual sourced	last-time-buy notice 12 months
JUN-P0005	part 5140-C	controller board	$148	25	100	dual sourced	no EOL commitment
JUN-P0006	part 6813-V	harness	$157	25	150	dual sourced	last-time-buy notice 12 months

Juniper price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
JUN-P0007	part 3369-E	battery module	$62	6	300	qualification in progress	last-time-buy notice 12 months
JUN-P0008	part 3844-Y	harness	$2,120	14	400	single source	no EOL commitment
JUN-P0009	part 6336-J	battery module	$370	4	350	dual sourced	last-time-buy notice 12 months
JUN-P0010	part 3627-H	encoder	$42	14	100	qualification in progress	EOL notice 6 months
JUN-P0011	part 9425-P	castor assembly	$1,655	9	50	dual sourced	no EOL commitment
JUN-P0012	part 6590-M	controller board	$2,255	21	450	dual sourced	last-time-buy notice 12 months
JUN-P0013	part 4319-D	controller board	$505	6	450	dual sourced	last-time-buy notice 12 months
JUN-P0014	part 6405-Y	battery module	$2,258	22	400	dual sourced	no EOL commitment
JUN-P0015	part 1725-K	controller board	$1,465	5	550	qualification in progress	EOL notice 6 months
JUN-P0016	part 1625-R	castor assembly	$488	22	400	qualification in progress	last-time-buy notice 12 months
JUN-P0017	part 5101-K	harness	$1,682	4	250	single source	last-time-buy notice 12 months
JUN-P0018	part 8377-F	drive unit	$2,374	10	600	single source	no EOL commitment
JUN-P0019	part 1564-K	optical sensor	$723	8	400	single source	no EOL commitment
JUN-P0020	part 6341-E	optical sensor	$434	13	450	qualification in progress	EOL notice 6 months
JUN-P0021	part 1391-Q	battery module	$1,977	21	200	dual sourced	EOL notice 6 months
JUN-P0022	part 1181-Z	harness	$684	12	50	single source	EOL notice 6 months
JUN-P0023	part 1597-U	harness	$696	21	500	dual sourced	last-time-buy notice 12 months
JUN-P0024	part 4052-M	battery module	$310	7	150	qualification in progress	EOL notice 6 months
JUN-P0025	part 8115-U	battery module	$1,640	13	500	dual sourced	last-time-buy notice 12 months
JUN-P0026	part 7053-I	controller board	$1,165	6	350	qualification in progress	last-time-buy notice 12 months
JUN-P0027	part 5754-Z	encoder	$1,547	24	450	dual sourced	EOL notice 6 months
JUN-P0028	part 4831-O	encoder	$2,011	4	100	qualification in progress	no EOL commitment
JUN-P0029	part 6754-B	harness	$2,109	13	50	dual sourced	no EOL commitment
JUN-P0030	part 4313-J	controller board	$1,368	14	500	single source	no EOL commitment
JUN-P0031	part 2903-D	harness	$295	9	50	dual sourced	EOL notice 6 months
JUN-P0032	part 7556-U	harness	$1,347	25	300	dual sourced	no EOL commitment
JUN-P0033	part 3393-W	encoder	$964	18	50	single source	EOL notice 6 months
JUN-P0034	part 6274-D	harness	$2,322	13	200	dual sourced	EOL notice 6 months
JUN-P0035	part 2852-X	optical sensor	$2,231	5	500	single source	no EOL commitment
JUN-P0036	part 9940-C	castor assembly	$1,306	11	50	dual sourced	last-time-buy notice 12

Juniper price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
JUN-P0037	part 7634-C	encoder	$2,073	5	550	single source	EOL notice 6 months
JUN-P0038	part 6538-O	battery module	$1,273	23	150	single source	last-time-buy notice 12 months
JUN-P0039	part 6343-W	optical sensor	$1,571	16	500	single source	no EOL commitment
JUN-P0040	part 3871-K	harness	$352	23	150	single source	last-time-buy notice 12 months
JUN-P0041	part 6821-I	drive unit	$2,283	17	450	dual sourced	no EOL commitment
JUN-P0042	part 2239-D	battery module	$2,204	16	300	qualification in progress	last-time-buy notice 12 months
JUN-P0043	part 9666-C	controller board	$2,387	7	600	dual sourced	EOL notice 6 months
JUN-P0044	part 3412-G	optical sensor	$1,103	15	300	single source	no EOL commitment
JUN-P0045	part 5942-F	battery module	$924	21	450	dual sourced	last-time-buy notice 12 months
JUN-P0046	part 7803-Y	controller board	$115	4	200	single source	EOL notice 6 months

1. Recitals and defined terms - part 2 of 2

Following on directly, these further rows of the 1. Recitals and defined terms belong to the same schedule and share its numbering. Pagination alone determines where it falls.

Scope, cut-off and units for the 1. Recitals and defined terms were fixed at its first part and are not repeated, being unaltered. No row is omitted at the join.

Juniper deployment order - Exhibit D - Component Prices, Lead Times and Sourcing (continued, part 2 of 2)

Juniper price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
JUN-P0047	part 3268-V	encoder	$1,039	24	400	qualification in progress	EOL notice 6 months
JUN-P0048	part 3213-L	harness	$1,986	22	150	qualification in progress	EOL notice 6 months
JUN-P0049	part 8862-A	battery module	$2,104	4	100	qualification in progress	last-time-buy notice 12 months
JUN-P0050	part 1989-D	controller board	$206	18	600	dual sourced	no EOL commitment
JUN-P0051	part 3947-Q	optical sensor	$1,088	17	150	dual sourced	last-time-buy notice 12 months
JUN-P0052	part 8251-Q	battery module	$902	15	100	qualification in progress	EOL notice 6 months
JUN-P0053	part 4476-X	encoder	$1,591	4	50	single source	EOL notice 6 months
JUN-P0054	part 8906-G	encoder	$1,575	16	250	qualification in progress	last-time-buy notice 12 months
JUN-P0055	part 1241-L	gearbox	$228	7	350	qualification in progress	EOL notice 6 months
JUN-P0056	part 5776-M	gearbox	$1,520	12	100	qualification in progress	EOL notice 6 months
JUN-P0057	part 8081-F	encoder	$2,267	21	450	qualification in progress	no EOL commitment
JUN-P0058	part 6826-P	battery module	$195	7	100	qualification in progress	last-time-buy notice 12 months
JUN-P0059	part 6795-D	castor assembly	$1,183	17	550	qualification in progress	no EOL commitment
JUN-P0060	part 4534-B	optical sensor	$732	12	250	single source	EOL notice 6

Juniper price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
JUN-P0061	part 6548-C	encoder	$1,931	15	300	qualification in progress	EOL notice 6 months
JUN-P0062	part 9125-V	gearbox	$1,220	16	500	dual sourced	last-time-buy notice 12 months
JUN-P0063	part 3647-J	battery module	$1,025	5	300	qualification in progress	last-time-buy notice 12 months
JUN-P0064	part 1301-M	gearbox	$1,461	6	50	dual sourced	no EOL commitment
JUN-P0065	part 4092-L	castor assembly	$2,074	13	450	single source	no EOL commitment
JUN-P0066	part 1334-P	optical sensor	$2,393	7	300	single source	EOL notice 6 months
JUN-P0067	part 6302-H	controller board	$1,020	20	200	qualification in progress	EOL notice 6 months
JUN-P0068	part 3333-H	encoder	$1,204	8	350	single source	last-time-buy notice 12 months
JUN-P0069	part 5038-V	controller board	$1,752	17	100	dual sourced	last-time-buy notice 12 months
JUN-P0070	part 2803-Z	drive unit	$2,199	4	300	qualification in progress	no EOL commitment
JUN-P0071	part 1195-I	castor assembly	$959	22	50	qualification in progress	last-time-buy notice 12 months
JUN-P0072	part 6218-J	battery module	$1,512	7	350	dual sourced	EOL notice 6 months
JUN-P0073	part 6526-N	castor assembly	$1,597	6	200	qualification in progress	EOL notice 6 months
JUN-P0074	part 1985-O	optical sensor	$2,096	22	400	dual sourced	last-time-buy notice 12 months
JUN-P0075	part 6987-X	controller board	$1,411	20	550	single source	last-time-buy notice 12 months
JUN-P0076	part 1926-T	encoder	$1,648	12	400	qualification in progress	EOL notice 6 months
JUN-P0077	part 4824-W	drive unit	$1,935	11	450	qualification in progress	no EOL commitment
JUN-P0078	part 7643-K	gearbox	$1,127	25	550	dual sourced	last-time-buy notice 12 months
JUN-P0079	part 6565-N	encoder	$2,298	8	200	dual sourced	no EOL commitment
JUN-P0080	part 1031-F	controller board	$1,752	24	300	single source	EOL notice 6 months
JUN-P0081	part 7524-O	controller board	$1,088	21	400	single source	last-time-buy notice 12 months
JUN-P0082	part 5868-J	controller board	$181	20	200	dual sourced	last-time-buy notice 12 months
JUN-P0083	part 2070-B	optical sensor	$1,910	17	100	dual sourced	EOL notice 6 months
JUN-P0084	part 5711-K	battery module	$697	18	200	dual sourced	no EOL commitment
JUN-P0085	part 6948-T	battery module	$914	21	450	qualification in progress	EOL notice 6 months
JUN-P0086	part 2019-N	gearbox	$1,217	13	400	dual sourced	EOL notice 6 months
JUN-P0087	part 2286-R	optical sensor	$115	8	100	dual sourced	no EOL commitment
JUN-P0088	part 9400-C	harness	$1,661	6	150	qualification in progress	no EOL commitment
JUN-P0089	part 8557-E	drive unit	$1,818	7	500	single source	EOL notice 6 months

Juniper price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
JUN-P0090	part 2639-P	battery module	$183	12	500	dual sourced	EOL notice 6 months
JUN-P0091	part 4780-R	optical sensor	$782	10	550	single source	no EOL commitment
JUN-P0092	part 3726-X	encoder	$1,080	8	200	qualification in progress	EOL notice 6 months

2. Scope of supply and orders

The Provider has undertaken to Juniper that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. On this point, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. This bites at Juniper's 3 sites, since a refrigerated storage operator administers the Deployment Order and Acceptance Addendum where the units work. For a customer of Juniper's size the clause is unremarkable, but Article 8 (Acceptance) is drafted more tightly here than in the Provider's standard form.

Juniper may require that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. By design, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. This bites at Juniper's 3 sites, since a refrigerated storage operator administers the Deployment Order and Acceptance Addendum where the units work. Because Juniper operates in refrigerated storage, the practical burden of this clause falls on its Georgia operation, and Article 21 (Governing Law and Disputes) governs how it is measured.

Juniper is not obliged, under Exhibit C, to accept that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. As it bites, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Juniper runs 3 sites from Georgia in refrigerated storage, so the Deployment Order and Acceptance Addendum is administered locally and this clause is applied per site. The obligation as it applies to Juniper was tightened at signature, and Article 3 (Scope of Supply) carries the negotiated wording rather than the standard wording.

Neither Juniper nor the Provider may treat Article 8 (Acceptance) as permitting telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. On any reading, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Running 3 sites in refrigerated storage, Juniper takes this obligation at site level rather than centrally under the Deployment Order and Acceptance Addendum. The obligation as it applies to Juniper was tightened at signature, and Article 7 (Service Levels) carries the negotiated wording rather than the standard wording.

3. Delivery, title and risk

The parties have recorded in Schedule 5 that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. In substance, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Juniper runs 3 sites from Georgia in refrigerated storage, so the Deployment Order and Acceptance Addendum is administered locally and this clause is applied per site. Administration of this obligation for Juniper sits with the account team rather than with central contracts, and Article 21 (Governing Law and Disputes) is where it is evidenced.

Nothing in Schedule 5 entitles Juniper to assume that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. In application, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. For Juniper, a refrigerated storage operator running 3 sites out of Georgia, the point matters because the Deployment Order and Acceptance Addendum is administered site by site. The Juniper file records the position as at the last amendment, and Article 9 (Customer Obligations) is the reference a reviewer should cite when raising it.

Except as Article 6 (Fees and Payment) permits, telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. On timing, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Juniper treats the obligation as a site-level matter across its 3 sites in Georgia, consistent with the Deployment Order and Acceptance Addendum. Notices under Article 21 (Governing Law and Disputes) go to the contracting entity named in the recital and not to any Juniper affiliate that may operate a site.

Under Article 7 (Service Levels) of the Deployment Order and Acceptance Addendum, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. As between them, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Because Juniper is a Georgia refrigerated storage business with 3 sites, the Deployment Order and Acceptance Addendum devolves this to the site manager. For a customer of Juniper's size the clause is unremarkable, but Article 3 (Scope of Supply) is drafted more tightly here than in the Provider's standard form.

Juniper deployment order - Schedule 5 - Notices, Periods and Addressees

Juniper notice type	Subject	Period	Addressee	Method	Deemed given
JUN-N001	termination for cause	5 days	General Counsel	email with acknowledgement	on despatch
JUN-N002	price adjustment	80 days	General Counsel	email with acknowledgement	on the second business day after despatch
JUN-N003	change of control	85 days	Chief Operating Officer	courier only	on despatch
JUN-N004	price adjustment	55 days	General Counsel	email with acknowledgement	on despatch
JUN-N005	termination for cause	85 days	Contracts Manager	courier only	on despatch
JUN-N006	breach	30 days	General Counsel	email with acknowledgement	on the second business day after despatch
JUN-N007	force majeure	70 days	Contracts Manager	email with acknowledgement	on receipt
JUN-N008	price adjustment	50 days	General Counsel	courier and email	on the second business day after despatch
JUN-N009	price adjustment	30 days	Chief Operating Officer	courier and email	on despatch
JUN-N010	termination for cause	80 days	General Counsel	email with acknowledgement	on despatch
JUN-N011	force majeure	45 days	Contracts Manager	courier and email	on receipt
JUN-N012	assignment request	35 days	Chief Operating Officer	portal notice	on receipt
JUN-N013	service credit claim	55 days	designated account executive	courier and email	on despatch
JUN-N014	force majeure	35 days	designated account executive	courier only	on receipt
JUN-N015	breach	50 days	General Counsel	portal notice	on receipt
JUN-N016	force majeure	30 days	Contracts Manager	courier only	on despatch
JUN-N017	non-renewal	40 days	designated account executive	portal notice	on the second business day after despatch
JUN-N018	force majeure	15 days	Contracts Manager	courier only	on the second business day after despatch
JUN-N019	assignment request	85 days	General Counsel	portal notice	on despatch
JUN-N020	service credit claim	15 days	Chief Operating Officer	portal notice	on the second business day after despatch
JUN-N021	force majeure	75 days	designated account executive	courier and email	on despatch
JUN-N022	termination for cause	30 days	Contracts Manager	courier only	on the second business day after despatch
JUN-N023	termination for cause	5 days	Chief Operating Officer	courier and email	on receipt
JUN-N024	renewal election	35 days	General Counsel	portal notice	on despatch
JUN-N025	service credit claim	80 days	Chief Operating Officer	portal notice	on receipt

Juniper notice type	Subject	Period	Addressee	Method	Deemed given
JUN-N026	renewal election	30 days	General Counsel	email with acknowledgement	on the second business day after despatch
JUN-N027	price adjustment	70 days	General Counsel	courier only	on receipt
JUN-N028	assignment request	25 days	General Counsel	email with acknowledgement	on receipt
JUN-N029	assignment request	85 days	General Counsel	courier only	on receipt
JUN-N030	price adjustment	5 days	General Counsel	courier only	on the second business day after despatch
JUN-N031	force majeure	60 days	Contracts Manager	portal notice	on the second business day after despatch
JUN-N032	assignment request	30 days	Chief Operating Officer	courier only	on despatch
JUN-N033	service credit claim	85 days	designated account executive	email with acknowledgement	on despatch
JUN-N034	force majeure	90 days	Chief Operating Officer	portal notice	on despatch
JUN-N035	termination for cause	10 days	Contracts Manager	courier and email	on receipt
JUN-N036	price adjustment	45 days	General Counsel	portal notice	on despatch
JUN-N037	renewal election	70 days	designated account executive	email with acknowledgement	on receipt
JUN-N038	assignment request	90 days	Chief Operating Officer	email with acknowledgement	on receipt
JUN-N039	change of control	35 days	Contracts Manager	portal notice	on receipt
JUN-N040	price adjustment	30 days	General Counsel	courier only	on despatch
JUN-N041	breach	45 days	Contracts Manager	email with acknowledgement	on despatch
JUN-N042	renewal election	65 days	Chief Operating Officer	courier only	on receipt
JUN-N043	service credit claim	50 days	General Counsel	courier and email	on receipt
JUN-N044	change of control	20 days	General Counsel	courier only	on receipt
JUN-N045	force majeure	25 days	Chief Operating Officer	email with acknowledgement	on receipt
JUN-N046	price adjustment	80 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
JUN-N047	service credit claim	50 days	designated account executive	portal notice	on receipt
JUN-N048	renewal election	85 days	Contracts Manager	courier and email	on the second business day after despatch
JUN-N049	force majeure	65 days	General Counsel	email with acknowledgement	on receipt
JUN-N050	renewal election	35 days	designated account executive	courier and email	on the second business day after despatch
JUN-N051	non-renewal	25 days	Chief Operating Officer	courier only	on receipt
JUN-N052	change of control	70 days	designated account executive	email with acknowledgement	on receipt
JUN-N053	force majeure	20 days	Contracts Manager	portal notice	on receipt
JUN-N054	change of control	30 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
JUN-N055	change of control	80 days	Contracts Manager	courier and email	on the second business day after despatch
JUN-N056	non-renewal	65 days	designated account executive	portal notice	on receipt
JUN-N057	non-renewal	85 days	designated account executive	courier and email	on the second business day after despatch
JUN-N058	change of control	80 days	Chief Operating Officer	portal notice	on the second business day after despatch
JUN-N059	non-renewal	80 days	Chief Operating Officer	portal notice	on receipt
JUN-N060	breach	25 days	designated account	portal notice	on receipt

Juniper notice type	Subject	Period	Addressee	Method	Deemed given
			executive		
JUN-N061	price adjustment	70 days	Chief Operating Officer	courier and email	on the second business day after despatch
JUN-N062	termination for cause	75 days	Contracts Manager	courier and email	on the second business day after despatch
JUN-N063	change of control	55 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
JUN-N064	assignment request	40 days	Chief Operating Officer	email with acknowledgement	on despatch
JUN-N065	termination for cause	85 days	designated account executive	courier only	on receipt
JUN-N066	change of control	75 days	Chief Operating Officer	courier and email	on despatch
JUN-N067	price adjustment	80 days	Chief Operating Officer	email with acknowledgement	on receipt
JUN-N068	renewal election	5 days	General Counsel	portal notice	on receipt
JUN-N069	service credit claim	30 days	Contracts Manager	courier and email	on receipt
JUN-N070	service credit claim	90 days	General Counsel	courier only	on despatch
JUN-N071	renewal election	5 days	designated account executive	email with acknowledgement	on receipt
JUN-N072	force majeure	70 days	Chief Operating Officer	email with acknowledgement	on receipt
JUN-N073	assignment request	45 days	designated account executive	courier and email	on the second business day after despatch
JUN-N074	renewal election	15 days	Chief Operating Officer	portal notice	on the second business day after despatch
JUN-N075	force majeure	15 days	Contracts Manager	courier and email	on despatch
JUN-N076	force majeure	65 days	Contracts Manager	courier only	on the second business day after despatch
JUN-N077	renewal election	40 days	Chief Operating Officer	portal notice	on despatch
JUN-N078	non-renewal	75 days	designated account executive	portal notice	on despatch

4. Fees, invoicing and escalation

Juniper Cold Storage Partners LLC is entitled to require that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. On the negotiated text, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. This bites at Juniper's 3 sites, since a refrigerated storage operator administers the Deployment Order and Acceptance Addendum where the units work. The Juniper file records the position as at the last amendment, and Article 18 (Assignment) is the reference a reviewer should cite when raising it.

Juniper may require that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. In application, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. For Juniper, a refrigerated storage operator running 3 sites out of Georgia, the point matters because the Deployment Order and Acceptance Addendum is administered site by site. Notices under Article 11 (Data and Telemetry) go to the contracting entity named in the recital and not to any Juniper affiliate that may operate a site.

Juniper may require that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. Practically, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Running 3 sites in refrigerated storage, Juniper takes this obligation at site level rather than centrally under the Deployment Order and Acceptance Addendum. The obligation as it applies to Juniper was tightened at signature, and Article 15 (Limitation of Liability) carries the negotiated wording rather than the standard wording.

Juniper Cold Storage Partners LLC is entitled to require that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. In terms of consequence, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. In refrigerated storage the burden of this sits with operations, and Juniper discharges it across 3 sites under the Deployment Order and Acceptance Addendum. Nothing in the Juniper negotiation history qualifies Article 16 (Term and Termination), and a reviewer should not read the pre-signature drafts as doing so.

5. Service levels and credits

Save as Schedule 3 otherwise provides, confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. As between them, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. 3 sites in Georgia means Juniper applies the Deployment Order and Acceptance Addendum through its regional operations team rather than through head office. Juniper has taken the point up once since signature; the correspondence is filed against Article 10 (Change Control) and did not result in an amendment.

Neither Juniper nor the Provider may treat Article 7 (Service Levels) as permitting personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. Textually, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. This bites at Juniper's 3 sites, since a refrigerated storage operator administers the Deployment Order and Acceptance Addendum where the units work. For a customer of Juniper's size the clause is unremarkable, but Article 21 (Governing Law and Disputes) is drafted more tightly here than in the Provider's standard form.

Where Article 12 (Intellectual Property) applies, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. By way of qualification, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. In refrigerated storage the burden of this sits with operations, and Juniper discharges it across 3 sites under the Deployment Order and Acceptance Addendum. The Juniper file records the position as at the last amendment, and Article 12 (Intellectual Property) is the reference a reviewer should cite when raising it.

The parties have recorded in Schedule 5 that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. Per the amendment history, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. This bites at Juniper's 3 sites, since a refrigerated storage operator administers the Deployment Order and Acceptance Addendum where the units work. Administration of this obligation for Juniper sits with the account team rather than with central contracts, and Article 11 (Data and Telemetry) is where it is evidenced.

6. Acceptance and change control

Under Article 15 (Limitation of Liability) of the Deployment Order and Acceptance Addendum, telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. Per the amendment history, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. In refrigerated storage the burden of this sits with operations, and Juniper discharges it across 3 sites under the Deployment Order and Acceptance Addendum. Administration of this obligation for Juniper sits with the account team rather than with central contracts, and Article 9 (Customer Obligations) is where it is evidenced.

As between Juniper and the Provider, acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. On the wording, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Juniper runs 3 sites from Georgia in refrigerated storage, so the Deployment Order and Acceptance Addendum is administered locally and this clause is applied per site. Administration of this obligation for

Juniper sits with the account team rather than with central contracts, and Article 9 (Customer Obligations) is where it is evidenced.

Read with Exhibit C, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Intended effect: the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. For Juniper, a refrigerated storage operator running 3 sites out of Georgia, the point matters because the Deployment Order and Acceptance Addendum is administered site by site. Notices under Article 9 (Customer Obligations) go to the contracting entity named in the recital and not to any Juniper affiliate that may operate a site.

Juniper Cold Storage Partners LLC has notified the Provider that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. As a remedy, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. For Juniper, a refrigerated storage operator running 3 sites out of Georgia, the point matters because the Deployment Order and Acceptance Addendum is administered site by site. Notices under Article 16 (Term and Termination) go to the contracting entity named in the recital and not to any Juniper affiliate that may operate a site.

Juniper deployment order - Exhibit A - Fee Schedule and Annual Escalator

Juniper fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
JUN-F001	fleet controller	23	$6,271	$144,233	3.2%	annually on the anniversary
JUN-F002	AMR-400 heavy unit	26	$1,947	$50,622	4.9%	not escalated
JUN-F003	safety scanner kit	41	$9,221	$378,061	5.4%	annually each January
JUN-F004	AMR-400 heavy unit	26	$8,278	$215,228	2.9%	on renewal only
JUN-F005	AMR-400 heavy unit	16	$6,076	$97,216	2.3%	not escalated
JUN-F006	AMR-200 mobile unit	40	$2,664	$106,560	4.9%	annually each January
JUN-F007	tote carrier	5	$5,372	$26,860	4.2%	on renewal only
JUN-F008	AMR-200 mobile unit	2	$5,839	$11,678	4.8%	not escalated
JUN-F009	charge dock	14	$6,767	$94,738	3.7%	annually on the anniversary
JUN-F010	AMR-400 heavy unit	20	$3,615	$72,300	4.9%	on renewal only
JUN-F011	lift attachment	4	$3,883	$15,532	5.8%	on renewal only
JUN-F012	charge dock	34	$6,592	$224,128	3.0%	not escalated
JUN-F013	AMR-400 heavy unit	2	$2,772	$5,544	4.6%	not escalated
JUN-F014	charge dock	8	$9,517	$76,136	2.3%	not escalated
JUN-F015	gateway appliance	21	$7,831	$164,451	3.2%	annually each January
JUN-F016	AMR-400 heavy unit	22	$2,695	$59,290	5.8%	annually each January
JUN-F017	lift attachment	23	$3,709	$85,307	5.4%	annually each January
JUN-F018	fleet controller	25	$2,178	$54,450	2.9%	not escalated
JUN-F019	AMR-200 mobile unit	28	$3,580	$100,240	2.2%	annually each January
JUN-F020	AMR-400 heavy unit	12	$7,335	$88,020	2.8%	on renewal only
JUN-F021	gateway appliance	19	$2,982	$56,658	3.5%	annually on the anniversary
JUN-F022	lift attachment	7	$6,959	$48,713	4.0%	annually each January
JUN-F023	gateway appliance	11	$8,933	$98,263	2.7%	on renewal only
JUN-F024	charge dock	24	$8,887	$213,288	4.6%	annually each January
JUN-F025	fleet controller	28	$2,838	$79,464	3.9%	annually on the anniversary

Juniper fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
JUN-F026	AMR-400 heavy unit	33	$1,672	$55,176	2.7%	annually each January
JUN-F027	gateway appliance	11	$3,795	$41,745	2.8%	annually each January
JUN-F028	lift attachment	34	$7,477	$254,218	5.0%	not escalated
JUN-F029	tote carrier	16	$7,921	$126,736	2.2%	on renewal only
JUN-F030	gateway appliance	19	$2,935	$55,765	5.4%	on renewal only
JUN-F031	AMR-400 heavy unit	40	$8,069	$322,760	4.8%	annually each January
JUN-F032	AMR-200 mobile unit	13	$9,494	$123,422	2.3%	annually on the anniversary
JUN-F033	tote carrier	5	$8,698	$43,490	2.5%	annually each January
JUN-F034	tote carrier	22	$3,551	$78,122	5.2%	annually on the anniversary
JUN-F035	AMR-400 heavy unit	21	$2,716	$57,036	4.8%	on renewal only
JUN-F036	gateway appliance	26	$8,291	$215,566	2.4%	annually each January
JUN-F037	AMR-200 mobile unit	41	$5,689	$233,249	4.2%	not escalated
JUN-F038	safety scanner kit	6	$4,476	$26,856	3.7%	not escalated
JUN-F039	AMR-200 mobile unit	14	$1,804	$25,256	2.9%	annually each January
JUN-F040	tote carrier	36	$5,796	$208,656	5.2%	on renewal only
JUN-F041	tote carrier	2	$7,732	$15,464	3.9%	not escalated
JUN-F042	safety scanner kit	15	$4,702	$70,530	4.2%	annually on the anniversary
JUN-F043	fleet controller	7	$6,036	$42,252	5.4%	annually each January
JUN-F044	tote carrier	37	$4,602	$170,274	3.2%	annually on the anniversary
JUN-F045	fleet controller	36	$5,895	$212,220	3.6%	annually each January
JUN-F046	AMR-400 heavy unit	26	$9,765	$253,890	3.4%	not escalated
JUN-F047	gateway appliance	10	$3,779	$37,790	4.0%	annually on the anniversary
JUN-F048	lift attachment	34	$3,401	$115,634	3.5%	on renewal only
JUN-F049	charge dock	29	$5,148	$149,292	2.4%	annually on the anniversary
JUN-F050	safety scanner kit	34	$8,718	$296,412	4.9%	not escalated
JUN-F051	lift attachment	13	$6,993	$90,909	5.5%	on renewal only
JUN-F052	AMR-200 mobile unit	20	$5,474	$109,480	5.9%	on renewal only
JUN-F053	AMR-200 mobile unit	30	$2,094	$62,820	4.8%	not escalated
JUN-F054	lift attachment	12	$9,393	$112,716	3.6%	not escalated
JUN-F055	AMR-200 mobile unit	20	$3,228	$64,560	3.7%	annually on the anniversary
JUN-F056	AMR-200 mobile unit	40	$1,693	$67,720	5.1%	annually on the anniversary
JUN-F057	fleet controller	15	$4,463	$66,945	4.6%	annually on the anniversary
JUN-F058	tote carrier	15	$7,628	$114,420	4.9%	annually each January
JUN-F059	safety scanner kit	25	$6,218	$155,450	4.9%	not escalated
JUN-F060	lift attachment	18	$4,685	$84,330	3.4%	annually each January
JUN-F061	gateway appliance	10	$2,687	$26,870	4.3%	annually on the anniversary
JUN-F062	safety scanner kit	34	$2,069	$70,346	3.9%	not escalated
JUN-F063	charge dock	7	$5,483	$38,381	5.4%	on renewal only
JUN-F064	AMR-200 mobile unit	22	$1,870	$41,140	2.6%	annually each January
JUN-F065	AMR-400 heavy unit	22	$3,493	$76,846	4.8%	on renewal only
JUN-F066	charge dock	16	$7,602	$121,632	4.1%	on renewal only

Juniper fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
JUN-F067	AMR-200 mobile unit	10	$2,861	$28,610	5.0%	on renewal only
JUN-F068	gateway appliance	28	$2,506	$70,168	5.4%	annually each January
JUN-F069	safety scanner kit	35	$1,648	$57,680	2.2%	not escalated
JUN-F070	lift attachment	3	$8,846	$26,538	3.9%	annually on the anniversary
JUN-F071	tote carrier	22	$5,178	$113,916	3.4%	annually each January
JUN-F072	charge dock	40	$6,570	$262,800	2.2%	on renewal only
JUN-F073	fleet controller	9	$8,010	$72,090	3.0%	not escalated
JUN-F074	AMR-200 mobile unit	7	$4,689	$32,823	3.1%	annually on the anniversary
JUN-F075	charge dock	14	$5,503	$77,042	2.2%	on renewal only
JUN-F076	lift attachment	2	$9,208	$18,416	2.7%	annually each January
JUN-F077	safety scanner kit	6	$1,524	$9,144	2.4%	annually each January
JUN-F078	safety scanner kit	34	$7,895	$268,430	5.2%	annually each January
JUN-F079	AMR-200 mobile unit	31	$1,448	$44,888	5.1%	annually each January
JUN-F080	AMR-200 mobile unit	14	$7,596	$106,344	4.9%	not escalated
JUN-F081	lift attachment	19	$2,037	$38,703	4.5%	not escalated
JUN-F082	AMR-200 mobile unit	21	$3,461	$72,681	3.6%	annually on the anniversary
JUN-F083	AMR-400 heavy unit	23	$8,851	$203,573	2.1%	on renewal only
JUN-F084	fleet controller	35	$7,954	$278,390	4.0%	not escalated
JUN-F085	gateway appliance	34	$2,500	$85,000	3.8%	annually each January
JUN-F086	gateway appliance	18	$3,138	$56,484	5.0%	annually on the anniversary
JUN-F087	gateway appliance	12	$3,799	$45,588	2.7%	annually each January
JUN-F088	safety scanner kit	7	$7,520	$52,640	3.8%	not escalated

7. Data, intellectual property and licences

Save as Exhibit B otherwise provides, a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. As a remedy, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Site count matters here: Juniper has 3 sites, and the Deployment Order and Acceptance Addendum treats each as a separate delivery point. Where Juniper has raised a query the Provider has answered by reference to Article 9 (Customer Obligations), and the exchange is on the contract file.

Save as Exhibit B otherwise provides, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. As agreed, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Site count matters here: Juniper has 3 sites, and the Deployment Order and Acceptance Addendum treats each as a separate delivery point. Notices under Article 14 (Indemnities) go to the contracting entity named in the recital and not to any Juniper affiliate that may operate a site.

Except as Article 2 (Definitions) permits, telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. As drafted, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Operating 3 sites, Juniper applies the Deployment Order and Acceptance Addendum at the point of delivery, as refrigerated storage practice requires. The Juniper relationship is managed against Article 3 (Scope of Supply) at each quarterly review, and any variance is minuted there rather than in the Order.

Article 16 (Term and Termination) provides that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. On the negotiated

text, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. For Juniper, a refrigerated storage operator running 3 sites out of Georgia, the point matters because the Deployment Order and Acceptance Addendum is administered site by site. The obligation as it applies to Juniper was tightened at signature, and Article 19 (Confidentiality) carries the negotiated wording rather than the standard wording.

8. Indemnities and limitation of liability

Read with Exhibit A, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. Operationally, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Georgia is where Juniper runs refrigerated storage operations across 3 sites, and the Deployment Order and Acceptance Addendum follows that footprint. Nothing in the Juniper negotiation history qualifies Article 2 (Definitions), and a reviewer should not read the pre-signature drafts as doing so.

Juniper Cold Storage Partners LLC is entitled to require that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Strictly, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Georgia is where Juniper runs refrigerated storage operations across 3 sites, and the Deployment Order and Acceptance Addendum follows that footprint. The Juniper file records the position as at the last amendment, and Article 3 (Scope of Supply) is the reference a reviewer should cite when raising it.

For the purposes of the Deployment Order and Acceptance Addendum, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. As agreed, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. For Juniper, a refrigerated storage operator running 3 sites out of Georgia, the point matters because the Deployment Order and Acceptance Addendum is administered site by site. The obligation as it applies to Juniper was tightened at signature, and Article 10 (Change Control) carries the negotiated wording rather than the standard wording.

Subject to Article 2 (Definitions), spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. As to enforcement, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. 3 sites in Georgia means Juniper applies the Deployment Order and Acceptance Addendum through its regional operations team rather than through head office. Administration of this obligation for Juniper sits with the account team rather than with central contracts, and Article 5 (Delivery and Title) is where it is evidenced.

Juniper deployment order - Schedule 2 - Sites and Operating Patterns

Juniper site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
JUN-S001	Meridian facility	7	2026-11-11	continuous	shared	pending acceptance
JUN-S002	Meridian facility	15	2025-02-11	two shifts	Customer furnished	accepted
JUN-S003	Fathom facility	20	2025-07-13	single shift	Provider furnished	pending acceptance
JUN-S004	Meridian facility	10	2025-02-27	continuous	Customer furnished	pending acceptance
JUN-S005	Dunbar facility	14	2024-01-28	two shifts	shared	accepted with punch list
JUN-S006	Granite facility	34	2026-03-05	two shifts	Provider furnished	accepted
JUN-S007	Granite facility	19	2025-02-21	continuous	Provider furnished	accepted with punch list
JUN-S008	Dayton facility	21	2026-06-28	two shifts	Customer furnished	pending acceptance
JUN-S009	Larkspur facility	34	2026-01-16	two shifts	Customer furnished	accepted with punch list
JUN-S010	Harborline facility	25	2024-05-04	single shift	shared	accepted
JUN-S011	Harborline facility	7	2026-01-22	single shift	shared	not commenced
JUN-S012	Larkspur facility	27	2025-02-19	continuous	Customer	accepted

Juniper site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
					furnished	
JUN-S013	Evergreen facility	4	2025-05-07	two shifts	shared	accepted with punch list
JUN-S014	Juniper facility	36	2025-09-11	single shift	Provider furnished	accepted
JUN-S015	Crestline facility	19	2025-08-13	continuous	shared	not commenced
JUN-S016	Juniper facility	28	2026-09-16	single shift	Customer furnished	accepted with punch list
JUN-S017	Evergreen facility	32	2025-07-10	continuous	Provider furnished	not commenced
JUN-S018	Meridian facility	29	2024-10-22	continuous	Provider furnished	accepted with punch list
JUN-S019	Dunbar facility	31	2024-01-20	two shifts	Provider furnished	accepted with punch list
JUN-S020	Granite facility	5	2026-11-12	single shift	Provider furnished	accepted with punch list
JUN-S021	Larkspur facility	11	2024-01-12	single shift	Customer furnished	accepted
JUN-S022	Dayton facility	35	2024-10-10	single shift	shared	accepted
JUN-S023	Dunbar facility	23	2025-09-14	two shifts	Customer furnished	accepted with punch list
JUN-S024	Crestline facility	37	2026-07-20	single shift	Customer furnished	accepted with punch list
JUN-S025	Mesa facility	32	2025-02-09	two shifts	Customer furnished	pending acceptance
JUN-S026	Juniper facility	33	2025-07-25	continuous	Provider furnished	pending acceptance
JUN-S027	Mesa facility	39	2026-02-11	single shift	Provider furnished	pending acceptance
JUN-S028	Fathom facility	20	2025-09-21	continuous	Provider furnished	not commenced
JUN-S029	Larkspur facility	17	2026-12-15	single shift	Provider furnished	accepted
JUN-S030	Larkspur facility	17	2024-05-02	continuous	Provider furnished	not commenced
JUN-S031	Evergreen facility	25	2024-05-04	two shifts	Customer furnished	not commenced
JUN-S032	Mesa facility	29	2026-06-26	single shift	Provider furnished	accepted
JUN-S033	Dunbar facility	28	2025-07-16	two shifts	shared	not commenced
JUN-S034	Dunbar facility	36	2025-04-26	two shifts	Customer furnished	accepted with punch list
JUN-S035	Fathom facility	19	2026-05-12	single shift	shared	pending acceptance
JUN-S036	Dunbar facility	39	2024-12-18	continuous	Customer furnished	accepted with punch list
JUN-S037	Mesa facility	31	2024-08-12	two shifts	Customer furnished	pending acceptance
JUN-S038	Granite facility	10	2024-12-22	single shift	Customer furnished	pending acceptance
JUN-S039	Meridian facility	37	2026-08-09	single shift	shared	accepted
JUN-S040	Larkspur facility	9	2025-08-02	single shift	Provider furnished	accepted
JUN-S041	Harborline facility	32	2025-09-14	two shifts	shared	accepted
JUN-S042	Larkspur facility	31	2024-06-20	single shift	shared	pending acceptance
JUN-S043	Keystone facility	9	2025-09-18	continuous	Provider furnished	pending acceptance
JUN-S044	Juniper facility	17	2026-07-11	single shift	Customer furnished	not commenced
JUN-S045	Fathom facility	22	2024-03-03	single shift	Provider furnished	pending acceptance
JUN-S046	Meridian facility	33	2026-07-02	continuous	Provider furnished	accepted with punch list
JUN-S047	Crestline facility	30	2026-02-02	single shift	Customer furnished	accepted
JUN-S048	Harborline facility	5	2026-06-28	continuous	Provider furnished	not commenced

Juniper site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
JUN-S049	Crestline facility	21	2025-05-10	two shifts	Provider furnished	pending acceptance
JUN-S050	Meridian facility	6	2026-05-14	single shift	Customer furnished	accepted with punch list
JUN-S051	Fathom facility	27	2024-02-06	two shifts	Customer furnished	accepted
JUN-S052	Larkspur facility	14	2024-09-21	continuous	Provider furnished	accepted with punch list
JUN-S053	Keystone facility	36	2024-05-01	continuous	Customer furnished	not commenced
JUN-S054	Harborline facility	20	2025-10-20	continuous	shared	not commenced
JUN-S055	Evergreen facility	34	2024-04-08	single shift	Customer furnished	not commenced
JUN-S056	Dunbar facility	31	2024-08-15	continuous	Provider furnished	accepted
JUN-S057	Granite facility	8	2025-08-03	single shift	Provider furnished	accepted
JUN-S058	Meridian facility	29	2026-11-07	continuous	Provider furnished	accepted with punch list
JUN-S059	Harborline facility	23	2024-02-18	single shift	Customer furnished	not commenced
JUN-S060	Meridian facility	38	2025-09-13	two shifts	Customer furnished	accepted
JUN-S061	Mesa facility	21	2026-11-22	two shifts	Customer furnished	pending acceptance
JUN-S062	Harborline facility	19	2026-02-19	continuous	shared	not commenced
JUN-S063	Granite facility	19	2024-08-02	continuous	shared	accepted
JUN-S064	Juniper facility	27	2024-10-16	continuous	Customer furnished	accepted with punch list
JUN-S065	Crestline facility	19	2026-10-17	continuous	Provider furnished	pending acceptance
JUN-S066	Juniper facility	27	2024-11-19	single shift	Customer furnished	accepted with punch list
JUN-S067	Keystone facility	38	2026-12-25	continuous	Provider furnished	accepted
JUN-S068	Granite facility	13	2025-09-02	two shifts	Customer furnished	not commenced
JUN-S069	Juniper facility	15	2026-12-27	single shift	shared	accepted
JUN-S070	Dunbar facility	6	2024-07-11	two shifts	Customer furnished	accepted
JUN-S071	Dunbar facility	8	2025-06-25	single shift	shared	accepted
JUN-S072	Keystone facility	8	2026-07-28	two shifts	Customer furnished	accepted
JUN-S073	Crestline facility	11	2025-10-08	continuous	Customer furnished	accepted
JUN-S074	Larkspur facility	24	2024-11-04	two shifts	Provider furnished	accepted
JUN-S075	Meridian facility	12	2024-04-27	continuous	Customer furnished	not commenced
JUN-S076	Crestline facility	35	2024-11-17	continuous	shared	accepted
JUN-S077	Meridian facility	7	2026-09-18	single shift	Customer furnished	accepted with punch list
JUN-S078	Larkspur facility	21	2025-07-08	continuous	shared	pending acceptance
JUN-S079	Juniper facility	30	2026-05-16	two shifts	Customer furnished	not commenced
JUN-S080	Meridian facility	15	2026-08-06	continuous	Customer furnished	accepted
JUN-S081	Dunbar facility	9	2026-12-18	continuous	Customer furnished	pending acceptance
JUN-S082	Granite facility	34	2024-08-27	continuous	Customer furnished	pending acceptance
JUN-S083	Larkspur facility	36	2025-03-19	single shift	Customer furnished	pending acceptance
JUN-S084	Keystone facility	21	2025-02-10	single shift	shared	accepted with punch list

9. Term, termination and transition

Article 6 (Fees and Payment) provides that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. Intended effect: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. The Deployment Order and Acceptance Addendum reaches each of Juniper's 3 sites separately, which is how a refrigerated storage operator in Georgia administers it. The obligation as it applies to Juniper was tightened at signature, and Article 7 (Service Levels) carries the negotiated wording rather than the standard wording.

Except as Article 11 (Data and Telemetry) permits, the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. In effect, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Because Juniper is a Georgia refrigerated storage business with 3 sites, the Deployment Order and Acceptance Addendum devolves this to the site manager. For a customer of Juniper's size the clause is unremarkable, but Article 2 (Definitions) is drafted more tightly here than in the Provider's standard form.

Read with Exhibit C, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. On any reading, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. The Deployment Order and Acceptance Addendum reaches each of Juniper's 3 sites separately, which is how a refrigerated storage operator in Georgia administers it. Notices under Article 10 (Change Control) go to the contracting entity named in the recital and not to any Juniper affiliate that may operate a site.

Juniper and the Provider agree that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Practically, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. 3 sites in Georgia means Juniper applies the Deployment Order and Acceptance Addendum through its regional operations team rather than through head office. The obligation as it applies to Juniper was tightened at signature, and Article 5 (Delivery and Title) carries the negotiated wording rather than the standard wording.

10. Assignment, notices and general

Juniper Cold Storage Partners LLC is entitled to require that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. As a remedy, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. The Deployment Order and Acceptance Addendum reaches each of Juniper's 3 sites separately, which is how a refrigerated storage operator in Georgia administers it. Where Juniper has raised a query the Provider has answered by reference to Article 6 (Fees and Payment), and the exchange is on the contract file.

Save as Schedule 2 otherwise provides, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Negotiated position: time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Running 3 sites in refrigerated storage, Juniper takes this obligation at site level rather than centrally under the Deployment Order and Acceptance Addendum. For a customer of Juniper's size the clause is unremarkable, but Article 10 (Change Control) is drafted more tightly here than in the Provider's standard form.

Except as Article 7 (Service Levels) permits, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Materially, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Operating 3 sites, Juniper applies the Deployment Order and Acceptance Addendum at the point of delivery, as refrigerated storage practice requires. The Juniper file records the position as at the last amendment, and Article 11 (Data and Telemetry) is the reference a reviewer should cite when raising it.

Juniper pays the fees under Schedule 3 in consideration of the Provider's undertaking that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. As between them, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. This bites at Juniper's 3 sites, since a refrigerated storage operator

administers the Deployment Order and Acceptance Addendum where the units work. Because Juniper operates in refrigerated storage, the practical burden of this clause falls on its Georgia operation, and Article 6 (Fees and Payment) governs how it is measured.

Where Article 19 (Confidentiality) applies, the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. In substance, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Operating 3 sites, Juniper applies the Deployment Order and Acceptance Addendum at the point of delivery, as refrigerated storage practice requires. The obligation as it applies to Juniper was tightened at signature, and Article 11 (Data and Telemetry) carries the negotiated wording rather than the standard wording.

Under Article 4 (Orders and Quantities) of the Deployment Order and Acceptance Addendum, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Per the amendment history, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. For Juniper, a refrigerated storage operator running 3 sites out of Georgia, the point matters because the Deployment Order and Acceptance Addendum is administered site by site. Nothing in the Juniper negotiation history qualifies Article 4 (Orders and Quantities), and a reviewer should not read the pre-signature drafts as doing so.